# Counting Communities: Colonial Enumeration, Law and Cartography in the Remaking of South Asia's Religious Demography

Nida Amir Afridi

Ph.D. candidate at University of the Punjab, Department of History and Pakistan studies

**Abstract**

The Judicial Plan of 1772 made a person's religion decide which law governed his family, and the district maps of the early nineteenth century gave each community a place on the ground, so the state already possessed its legal boxes and its spatial grid when the first synchronous Census of India was taken in 1881. This article asks what that census then did to the community shares it recorded, up to the Radcliffe Award of 1947. Its answer separates registration from cause. Famine, plague and the influenza of 1918–19 fell unevenly on regions, and mass conversions followed local patterns of caste exclusion; the census provided a baseline for administrative action. When personal law, land-alienation statutes, military recruitment, and separate electorates later came to rest on these counts, local demographic shifts were rendered legible as communal ones. Indian reformers and politicians then took up the categories for their own ends. Each step had a purpose, but the sum was contingent and unplanned. Drawing on census reports from 1872 to 1941, legislative texts and case studies from Punjab, Bengal, Assam and Travancore, the article follows the categories into independent India, where the single-answer religion column of the 1951 censuses and the Scheduled Castes Order of 1950 still tie a Dalit's entitlements to the religion he declares.

*Keywords:* British India; census; communalism; personal law; separate electorates; conversion; Partition

What the colonial state changed in South Asia's religious life was less what its subjects believed than what it cost, or paid, to say so. The instruments were many and they overlapped; none was a first cause. After the Judicial Plan of 1772 the courts needed every litigant to belong to a single community, and the district map of the early nineteenth century gave each community a territory in which it could be found. From 1881 the census converted overlapping devotional practice into mutually exclusive populations whose growth rates became political facts, and a succession of settlements, statutes and electoral rules attached land, office, representation and legal status to those counted labels. Cyril Radcliffe's award of August 1947 drew the last of these lines.

The argument for contingency modifies, and does not replace, the familiar picture of late-colonial administration as a business of friction. Provincial governments contradicted one another, Lord Morley disliked the separate electorates he conceded in 1909, and the Partition of Bengal of 1905 was annulled six years later; historians of North India and Bengal have read such episodes as the improvisations of an administration answering local pressure (Chatterji, 1994; Pandey, 1990; Robinson, 1974). This article carries that reading from politics into demography. Provincial officials pursued revenue, internal order and legible imperial subjects. Although individual administrative policies were calculated, their cumulative demographic fallout remained unplanned and deeply contingent. Partition itself came out of an empire too exhausted to hold its ground (Khan, 2007) and of a 1941 census whose tables supplied the figures on which the Pakistan demand was argued (Jalal, 1985).

Conversion, famine and epidemic disease moved the numbers, but not for reasons the colonial state supplied. Famine, plague and the influenza of 1918–19 fell on regions and occupations, and mass conversions followed local patterns of caste exclusion and mission

activity; each had its own ecological or social drivers. What the census contributed was the means of recording them as shifts between communities. A mass movement among the Chuhras of Punjab or the Nadars of Travancore registered as growth in the Christian column because a schedule offered a Christian column, and a famine could register as communal decline because the tables set the dead of one community beside the survivors of another.

The question of how far categories were made rather than found has hardened into a debate. Cohn (1987) treated the census as a technology of objectification that produced the communities it claimed to describe, and Dirks (2001) extended the claim to caste as the colonial state's central sociological invention; Pandey (1990) placed the construction of communalism on the same ground. Against this view stand historians who find the boundaries older than the Raj. Guha (2003) finds Mughal and Maratha administrations already counting and ranking by community for fiscal and ritual purposes, Bayly (1985) traces pre-colonial disputes over processions and sacred sites that colonial rule inherited and did not invent, and Talbot (1995) reads medieval inscriptions in which 'Hindu' and 'Turk' were already political identities. Lorenzen (1999) puts the polarity most sharply by asking who invented Hinduism, which sets the case for a pre-colonial Hindu identity against the argument, associated with Thapar (1989a) among others, for its modern construction. Oberoi (1994) and Gilmartin and Lawrence (2000) add the agency of Indian reformers, publicists and notables who put colonial categories to their own uses. This article sides with neither pole entirely. The state supplied rigid machinery in the form of the single-answer schedule, the personal-law courts and the electoral roll, but the boundaries became weapons only when indigenous networks, among them the Singh Sabha, took them up, and the census and the movements that answered it have to be read together.

The argument rests on a comparative reading of the General Reports of the Census of India for 1881, 1901, 1911, 1931 and 1941 and of the Bengal census of 1872, set beside the legislative texts that put the counts to use and regional case studies from Punjab, Bengal, Assam and Travancore.

## Before the Count

Ramdev Pir fits no column, which is why he is the place to begin. The Satpanth tradition of Gujarat and Rajasthan gathered followers around pirs such as Ramdev and Imam Shah in an idiom that neither Brahmanical nor Islamic orthodoxy fully claimed, and Khan (1997) shows a regional system in which a worshipper's identity shifted with context and was not fixed by an exclusive confession. The Khoja ginans, devotional compositions, described the Ismaili Imam through the vocabulary of the Vishnu avatara, and no priest of either tradition was needed to certify the arrangement (Khan, 1997). Such a system defied the exclusive columns later laid across it. Even the vocabulary was unsettled. 'Hindu' entered Persian and Arabic usage as a geographical term for the people east of the Indus, and its consolidation into the name of a single religion was largely a nineteenth-century achievement (Thapar, 1989a, 1989b); medieval Telugu inscriptions deployed the word to mark an opposed other more than to name a creed (Talbot, 1995). A similar landscape of fluid, syncretic practices defined the Bengal delta, where Islam spread alongside forest clearance and rice cultivation, and the cult of the pir fused with agrarian settlement into a peasant religiosity (Eaton, 1993). The Bauls deliberately stood outside both Brahmanical and shari'a authority (Openshaw, 2002), and at Ajmer and a hundred lesser dargahs devotees of both communities prayed side by side.

Pre-colonial states did classify, and Guha (2003) documents the practice. Abu'l-Fazl's *Ain-i-Akbari* (c. 1595) catalogued zamindar castes, revenue assessments and cavalry quotas, and

Aurangzeb's reimposition of the jizya in 1679, after Akbar had abolished it in 1564, required clerks to separate believers from non-believers for a fiscal purpose. That was classification by religion, and it matters that it served a tax and not a table. A jizya roll identified who owed a payment at a moment of royal policy; it did not set Hindus against Muslims as rival populations with comparable growth rates in a synchronous, standardised return. Mughal counting remained local, fiscal and heterogeneous.

It was in the law courts, before any census existed, that the state first needed every subject to belong to one community or another. The Orientalists of Calcutta held that Indian society was governed by ancient texts, so that to know the texts was to know the people. Nathaniel Halhed's *A Code of Gentoo Laws* (1776) was rendered from a Persian translation of a Sanskrit compilation prepared by pandits, and William Jones's *Institutes of Hindu Law* (1794) and H. T. Colebrooke's *Digest* (1798) made the *Manusmriti* and the dharmashastra the canonical core of 'Hindu' law (Rocher, 1993). The pandits who compiled these texts, and the maulvis and pandits who later advised the courts, were Indian specialists on whose expertise colonial knowledge depended (Bayly, 1996). Warren Hastings's Judicial Plan of 15 August 1772 followed the Company's acquisition of the diwani in 1765. It set up mofussil diwani adalats under a Sadr Diwani Adalat at Calcutta, and Article 23 directed that suits on inheritance, marriage, caste and other religious usage be decided by the Quran for Muslims and the shastras for Hindus. English judges could read neither, so maulvis and pandits sat as law officers until Act XI of 1864 abolished the posts. A person's religion now determined the legal universe of his family and property. For Muslims the result was 'Anglo-Muhammadan' law, shaped as much by translations of the *Hedaya* and by case precedent as by jurisprudence (Anderson, 1993). Groups whose custom diverged from scripture, such as the Khojas and Memons of western India, were

pressed to prove which law governed them, as in the Khoja Case of 1847 and the Aga Khan Case of 1866 before the Bombay High Court.

In 1872 the census of Bengal produced a result that officials had not expected. H. Beverley's *Report on the Census of Bengal, 1872* revealed a Muslim majority across the eastern districts and near parity with Hindus in the province as a whole, which unsettled the official assumption that Bengal was a Hindu country with a Muslim fringe (Beverley, 1872). The return came at the end of a long and uneven apprenticeship. Francis Buchanan-Hamilton had estimated households and religious proportions in Bengal districts between 1807 and 1814, and Henry Walters produced an estimate for Dacca in 1830. Provincial censuses arrived piecemeal: the North-Western Provinces in 1865, the Central Provinces in 1866, the Punjab in 1868, Madras in 1871. The patchwork returns of 1871–72, summarised by Henry Waterfield (1875), applied 'Hindoo', 'Mussulman', 'Aboriginal' and 'Others' inconsistently, and Sikhs, Jains and Buddhists were absorbed or separated by local preference.

Rumours in 1857 of cartridges greased with cow and pig fat converted religious anxiety into mutiny, and the state concluded that it had not known its subjects' inner lives (Bayly, 1996). Sayyid Ahmad Khan's *Asbab-e-Baghawat-e-Hind* (1858–59) answered at once that British blindness, not Muslim conspiracy, had caused the revolt (Ahmad Khan, 1873). The Government of India Act of 1858 transferred rule to the Crown, and Queen Victoria's proclamation of 1 November 1858 promised non-interference in religion, though a government that also wanted deeper knowledge of its subjects was bound to classify them. The Peel Commission of 1858–59 recast army recruitment around 'reliable' pools. In 1871 W. W. Hunter's *The Indian Musalmans*, written amid the Wahhabi trials, cast Muslims as a potential internal threat, and the Criminal

Tribes Act of the same year attached hereditary suspicion to whole communities (Metcalf, 1964, 1994).

## Extraction and the Distribution of Advantage

The revenue collector, the recruiting sergeant and the cantonment magistrate had redistributed income, land and office between communities well before any enumerator asked about religion, and what later hardened into ‘Hindu’ and ‘Muslim’ interests rested partly on the material asymmetries they left behind.

The scale of the transfer is disputed; its direction is not. Naoroji (1901) and Dutt (1901, 1903) identified the Home Charges (pensions, interest on railway and public debt, and India Office costs) together with an export surplus unmatched by returns, and Patnaik (2018) puts the cumulative sum in the trillions of dollars, a figure Roy (2011) contests on method.

The settlements mattered for communities because they fixed who held what. Cornwallis’s Permanent Settlement of 1793 froze the Bengal revenue demand, and the Sunset Law of 1794–95 made a zamindar forfeit his estate for default. Within a generation many great estates were auctioned. The purchasers were disproportionately Hindu, drawn from Brahman, Kayastha and Baidya service families and from Calcutta’s banian and mutsuddi class with capital tied to Company trade (Islam, 1979; Ray & Ray, 1973), while the cultivating majority of eastern Bengal was increasingly Muslim (Eaton, 1993), so that a religious map and an agrarian hierarchy came to overlap. The Bengal Resumption Regulation of 1828 then authorised scrutiny of rent-free (lakhiraj) tenures and stripped many Muslim religious and educational endowments of income, a loss that Hunter (1871) read as the collapse of the old Muslim gentry. Under the ryotwari systems of Madras and Bombay, assessing individual cultivators in cash drove them towards moneylenders, and the Deccan Riots of 1875 produced the Deccan Agriculturists’ Relief

Act of 1879. In Punjab, indebted peasants and trading creditors faced one another along lines of religion and caste as well.

The Company's annexations dismantled the armed establishments of Mysore (1799), the Maratha confederacy (1818), Sind (1843), the Sikh Khalsa state (1849) and Awadh (1856), and the Arms Act of 1878 turned the bearing of weapons into a colonial licence. The Bengal Army had recruited heavily among high-caste Hindu purbiyas of Awadh and Bihar, and its mutiny taught the state to distrust them. The Eden Commission of 1879 and Lord Roberts's tenure as Commander-in-Chief (1885–93) moved the centre of gravity of recruitment north-westward and justified it in ethnographic terms: Punjabi Muslims, Sikhs, Dogras, Pathans and Gurkhas were 'martial', Bengalis and Madrasis were not (Roberts, 1897; Omissi, 1994; Streets, 2004; Mason, 1974; Cohen, 1971). Its gendered corollary was the 'effeminate Bengali' (Sinha, 1995). By the First World War Punjab, with a small share of India's population, supplied the largest share of combatant recruits (Tan, 2005). Pensions and canal-colony grants flowed to loyal military districts such as Rawalpindi, Jhelum and Campbellpur, and in the cantonments that housed the regiments, where recruiting officers preferred visibly orthodox Sikhs, the incentive to keep the Khalsa markers was practical as much as devotional.

Labour was governed by penal contract. The Workmen's Breach of Contract Act of 1859 criminalised desertion by plantation labourers, and recruiters drew Santal, Oraon and Munda families into the Assam tea gardens under state-enforced agreements (Bose, 1993; Das Gupta, 1994). Many of those families would later be counted as 'Animists', and then as Christians or Hindus, according to which missionary, census officer or reformer reached them first.

## The Census as Instrument

### Schedules and residual categories

The first synchronous Census of India was taken on the night of 17 February 1881 under W. C. Plowden (1883). Enumerators, often village accountants (patwaris) or schoolmasters, copied answers into pre-printed schedules whose religion column admitted one entry per person. A householder who revered Ramdev Pir and the Prophet in the same breath, or who kept a Brahman priest beside a Sufi shrine, had to be reduced to a single label. Residual categories compounded the reduction. ‘Hindu’ functioned as the default for anyone not clearly something else (Jones, 1981; Guha, 2003), while tribal populations moved between ‘Animist’, ‘Aboriginal’ and ‘Hindu’ columns as commissioners changed their definitions. Risley and Gait’s report on the 1901 census (1903) enumerated Animists as a separate head, and Gait’s report on 1911 (1913) went further and proposed ten tests of Hinduism, among them whether a group denied the supremacy of Brahmans, was served by Brahman priests, could enter the interior of ordinary Hindu temples, caused pollution by touch, buried its dead, or ate beef. The tests could inflate or deflate the Hindu total at the commissioner’s discretion, and in 1911 they served chiefly to identify groups held to stand outside orthodox Hinduism. Their status became the Depressed Classes question of 1921 (Marten, 1924) and, by 1931, the ‘exterior castes’ of Hutton’s report (1933). The Communal Award and Poona Pact of 1932 and the Scheduled Castes Order of 1936 converted that census category into a political bloc.

### Numbers and their mechanisms

Printed tables then did what no earlier document had done: they set communities in one column and computed their decennial growth. Table 1 gives rounded community shares for India, including the princely states.

**Table 1**

*Community Shares in the Census of India (Per Cent of Total Population, Rounded)*

| | 1881 | 1901 | 1931 | 1941 |
|---|---|---|---|---|
| Hindu | 74 | 70 | 68 | 66 |
| Muslim | 20 | 21 | 22 | 24 |
| Sikh | 0.7 | 0.8 | 1.2 | 1.5 |

*Note.* Compiled from Plowden (1883), Risley and Gait (1903), Hutton (1933) and Yeatts (1943). Boundaries and definitions varied between censuses.

Across sixty years the Hindu share fell by some 8.4 percentage points, from about three-quarters of the population to about two-thirds, while the Muslim share rose by roughly 4.5 points, from about one-fifth in 1881 to nearly a quarter in 1941; Sikhs and Christians each roughly doubled their shares, the Sikhs from 0.7 to 1.5 per cent. The Hindu row is the least stable of the three, since the tests of 1911 and the ‘exterior castes’ of Hutton’s report (1933) moved whole groups in and out of the Hindu total. The absolute Muslim total rose from roughly 50 million to roughly 78 million between 1881 and 1931, faster than the Hindu total, whose series was itself altered by the reclassification of tribal groups (Plowden, 1883; Hutton, 1933). Christians rose from about 1.9 million in 1881 to about 6.3 million in 1931, and Sikhs from under two million to about 4.3 million. The provincial figures were sharper. Muslims were already roughly half of Punjab’s population in 1881, with Sikhs near eight per cent, and by 1941 they stood at about 53 per cent against nearly 15 per cent Sikh. In Bengal, the near parity found in 1872 had become a Muslim majority of about 55 per cent by 1941 (Beverley, 1872; Yeatts, 1943).

These shifts had demographic causes that preceded their politicisation. Famines in 1876–78 and 1896–1902 killed millions, unevenly across regions; plague, which reached Bombay in 1896 and spread through Punjab and the United Provinces, killed millions more over the next

quarter-century (Arnold, 1993); and the influenza pandemic of 1918–19 killed an estimated 12 to 18 million (Davis, 1951; Dyson, 2018). Mortality fell on regions and occupations more than on creeds, but regions differed in religious composition. Fertility differed too: widow remarriage, barred among many upper-caste Hindus and permitted among Muslims and lower castes, together with variation in age at marriage, raised growth in some groups (Davis, 1951; Dyson, 2018). The canal colonies of western Punjab and the cultivated frontier of the eastern delta, both Muslim-majority zones of agrarian expansion, attracted migrants and supported high natural increase, so that much of the apparent Muslim ‘advance’ was regional demography read as religious competition.

Publicists read the tables as prophecies. U. N. Mukerji’s *Hindus: A Dying Race* (1909) extrapolated the decennial figures towards the extinction of Hindus, and the Arya Samaj’s shuddhi campaigns drew on the same anxiety. A Muslim in Bengal learned from 1872 that his co-religionists formed a majority, and a Hindu in Punjab learned from 1881 that his community was a minority in the province; the printed figures gave each side something to defend and something to recruit towards (Pandey, 1990; Appadurai, 1993).

**Cantonment, civil lines and map**

The same bureaucratic habit of sorting by type was written into town plans. After 1857 the Raj laid out the cantonment, a self-contained military settlement with parade ground, hospital and regimental bazaar, outside the native city, and beyond it the Civil Lines of European officials; Lahore, Meerut, Allahabad, Rawalpindi and Peshawar follow the template (King, 1976). The Cantonments Act of 1864 (Act XXII) gave a station magistrate and cantonment committee control of sanitation, building and licensed trade within the boundary, so that the right to open a shop, supply troops or reside in the bazaar lines was a revenue-bearing privilege

dispensed by commanding officers. When plague and cholera struck, bazaar residents were counted, licensed and inspected under a sanitary regime that treated native bodies as vectors, and the plague measures of 1896–1900 in Bombay and Punjab, with their segregation, quarantine and house-searches, angered Hindus and Muslims alike (Arnold, 1993). Mapping did the same work at provincial scale. The Great Trigonometrical Survey, begun by William Lambton in 1802, supplied the grid on which the district became the basic unit of knowledge, revenue and law (Edney, 1997), and every boundary drawn on that grid put some communities on one side and some on the other.

**Personal law and the codification of custom**

The courts took the same sorting into the household. The Caste Disabilities Removal Act of 1850 (Act XXI) protected the inheritance rights of those who changed religion, which lowered the material cost of conversion. The Indian Succession Act of 1865 and the Indian Christian Marriage Act of 1872 created codes for Christians, and the Special Marriage Act of 1872 (Act III) required a person marrying outside his community to declare that he did not profess the Christian, Jewish, Hindu, Muhammadan, Parsi, Buddhist, Sikh or Jain religion, so that renunciation of community became the price of marriage across one. In Punjab the Punjab Laws Act of 1872 admitted custom among agriculturists, but custom reached the courts through riwaj-i-am compilations that revenue officers drew up from the testimony of village elders, and C. L. Tupper's *Punjab Customary Law* (1881) fixed an oral and variable practice into written rule after officials had decided which groups counted as agricultural tribes. Muslim Jats and Gujars whose families followed custom that often excluded daughters from inheritance saw it displaced by the Shariat Application Act of 1937, and at each of these stages the space in which a person could stand between two traditions grew narrower (Anderson, 1993; Gilmartin, 1988).

## Statute, Franchise and the Legal Community

### Land and credit

The Punjab Land Alienation Act of 1900 (Act XIII) answered an official fear that cultivators who sold or mortgaged their land to moneylenders would lose the capacity to pay revenue and to furnish recruits. S. S. Thorburn's *Musalmans and Money-lenders in the Punjab* (1886) had given that fear a communal address. The Act empowered the provincial government to notify 'agricultural tribes' district by district; land of a notified tribe could not be permanently alienated to anyone outside it, and usufructuary mortgages were capped at twenty years (Barrier, 1966). The lists followed caste and tribal names and not religion, which complicated the effect. Jats, Rajputs, Gujars and Awans were protected whether Muslim, Sikh or Hindu, while Khatris, Aroras, Banias and most urban commercial castes were not. Because the lenders were overwhelmingly Hindu and many debtors were Muslim or Sikh, the statute produced a legal frontier that looked from the bazaar like a religious one (Talbot, 1988; Tan, 2005; Bhattacharya, 2018). Credit did not vanish; it moved to agriculturist moneylenders and to benami transactions. The Act also sheltered a cross-communal settlement. Hindu Jats of Rohtak and Hissar and Muslim landlords of the western districts shared its protections, and the Unionist Party of the interwar years drew on that overlap, so that the statute created class lines and religious lines at once.

### Boards, languages and offices

Municipal government gave local notables their first sustained practice at competing for seats as communities. Ripon's resolution of 1882 encouraged elected local boards, and the North-Western Provinces and Oudh Municipal Act of 1883 and the Punjab Municipal Act of 1884 followed. The franchise was narrow, but committees controlled octroi, water, sanitation,

school grants, and the siting of cattle pounds, slaughterhouses and procession routes, and ward elections rewarded candidates who could assemble a communal bloc (Freitag, 1989). Where elections returned few members of a minority, officials sometimes nominated more to restore balance, which made a minority's share a matter of administrative discretion (Gilmartin, 1988; Pandey, 1990). Language supplied the cultural vocabulary. Persian gave way to the vernaculars in the courts under Act XXIX of 1837, the Hindi–Urdu controversy broke out at Benares in 1867, and the North-Western Provinces resolution of 1900 admitted the Nagari script alongside Persian and turned a literary question into a communal one (Pandey, 1990).

Offices and schools were distributed through the same state-backed patronage of particular communities. The Macaulay Committee of 1854 opened the civil service to competitive examination, held in London from 1855, on terms that favoured the English-educated, which in Bengal meant the Hindu bhadralok formed by institutions such as the Hindu College of 1817. Hunter's tables of 1871 recorded the near absence of Muslims from the higher grades (Hunter, 1871). The Aitchison Public Service Commission of 1886–87 revised the service structure and left the underlying contest intact. Sayyid Ahmad Khan's Muhammadan Anglo-Oriental College at Aligarh (1875) answered the deficit, the Hunter Education Commission of 1882 recommended special encouragement of Muslim schooling, and a government resolution of 1885 turned the recommendation into scholarships and fee concessions. Hindu reformers built the Dayanand Anglo-Vedic College at Lahore (1886), and Sikh leaders Khalsa College at Amritsar (1892). Titles, honorary magistracies and zaildari appointments in Punjab rewarded loyalty in the name of a community, and each institution then reckoned its community's share of posts.

### Representation by community

The Indian Councils Act of 1892 introduced no elections, but it allowed municipalities, district boards, universities and chambers of commerce to recommend names for nomination. Sayyid Ahmad Khan's speeches at Lucknow (1887) and Meerut (1888) argued that head-count elections would deliver the councils to the Hindu majority, and the argument rested on a premise that the census had made available: the numbers were known, and a minority could see its position in them (Robinson, 1974). On 1 October 1906 a deputation of Muslim notables led by the Aga Khan waited on the Viceroy, Lord Minto, at Simla and asked that Muslim representation be assessed by political importance and service to the Crown, and not by population. Minto's reply was warm, and the possibility that officials helped prepare the occasion is plausible (Robinson, 1974). The All-India Muslim League was founded at Dacca on 30 December 1906. Morley disliked communal electorates and was persuaded otherwise, and the Indian Councils Act of 1909 reserved seats for Muslims, filled by Muslim voters alone under lower property qualifications, some of them with weightage above numerical share. The result was mechanical: a candidate in a reserved constituency needed one community's votes and no other's, and the cheapest way to win them was to speak for that community against its neighbour. The Lucknow Pact of 1916 entrenched the principle when Congress conceded it in exchange for fixed Muslim proportions in the councils (Hasan, 1979). The Government of India Act of 1935 extended the franchise to roughly thirty million voters and kept the separate electorates.

## Conversion, Reform and Reclamation

State categories met Indian movements in the field of conversion and reform. The movements were not creatures of the census, but they were conducted in its terms, and their success was measured in its columns.

The Charter Act of 1813 opened India to missionaries, and the demographic effect came less from individual conversion among elites than from mass movements among Dalit and tribal groups (Pickett, 1933; Webster, 1976). Chuhras in Punjab entered the Church in large numbers from the 1890s, Mala and Madiga communities in Andhra in the later nineteenth century, and Oraons and Mundas of Chota Nagpur from the 1840s under Lutheran, Anglican and later Catholic missions (Forrester, 1980). Converts sought dignity, schooling and protection from landlords and moneylenders as much as doctrine, and the Act of 1850 had already protected their inheritance. The census recorded the effect: the Christian total rose from about 1.9 million in 1881 to about 6.3 million in 1931.

Travancore shows the interaction most clearly. The Syrian Christian community of Kerala was ancient, and the Church Missionary Society (from 1816) and the London Missionary Society worked among Ezhavas, Pulayas and the Nadars of the south, groups barred from the dress and temple privileges of caste Hindus (Jeffrey, 1976; Kawashima, 1998). Nadar women who converted adopted the upper cloth, which provoked violent resistance from caste Hindus in the Channar disturbances until a Travancore proclamation of 1859 conceded the point. Christians stood at roughly a quarter of the state’s population in 1901 and nearly a third by 1931, an increase driven by conversion and by higher growth among Syrian Christians. Conversion pressure and caste exclusion together forced a Hindu response: the Vaikom Satyagraha of 1924–25 contested access to temple roads, Sree Narayana Guru built Ezhava institutions of their own, and the Temple Entry Proclamation of 12 November 1936 opened state temples to all Hindus (Jeffrey, 1976; Menon, 1994). Malabar, under the Madras Presidency, moved differently, as tenancy conflict between Mappila cultivators and Hindu landlords fed the rebellion of 1921 (Menon, 1994).

In Punjab, Dayananda Saraswati's *Satyarth Prakash* (1875) and the Arya Samaj that grew from his Lahore visits of 1877 organised the readmission of converts and outcastes to a reformed Hinduism through shuddhi (Jones, 1976). The campaigns multiplied after 1900 and peaked in 1923 in the effort to reclaim the Malkana Rajputs of the United Provinces, whom officials had counted as Muslim, Hindu or both. Muslim organisations answered with Tabligh and Tanzim, and the murder of Swami Shraddhanand in December 1926 showed how far the contest had hardened (Pandey, 1990; Jones, 1976).

The Singh Sabha, founded at Amritsar in 1873 and at Lahore in 1879, and its Tat Khalsa wing redefined Sikh practice against both Sanatan custodians of the gurdwaras and Arya claims that Sikhs were Hindu reformers. Kahn Singh Nabha's *Ham Hindu Nahin* (1898) stated the separation in print, the Anand Marriage Act of 1909 gave Sikhs a ceremony distinct from Hindu rites, and Akali agitation produced the Sikh Gurdwaras Act of 1925. A continuum of Sikh–Hindu practice gave way to a boundary (Oberoi, 1994), and it did so under census pressure, since the definition of a Sikh in the Punjab schedules and the Sikh share of the province were themselves matters of anxious negotiation.

Among Muslims, reformist currents worked towards a similar clarity. The Faraizi movement of Haji Shariatullah and Dudu Miyan in eastern Bengal demanded that cultivators abandon Hindu-derived ritual, and the Deobandi school, founded in 1866, and its Barelvi rivals disputed the proper observance of shrines and festivals, each seeking to purge syncretic practice (Metcalf, 1982; Ahmed, 1981). In Bengal, reform pressed the peasantry towards a more distinct Muslim self-identification (Ahmed, 1981; Eaton, 1993). None of these movements was colonial in origin, yet all depended on a colonial framework: a legal order that protected converts, schedules that recorded them, and electoral rules that valued their numbers.

## Lines on the Ground, 1905–1947

In 1900 the Presidency of Bengal held roughly 78 million people across Bengal proper, Bihar, Orissa and Chota Nagpur, and a single Lieutenant-Governor at Calcutta could not supervise the eastern districts with any grip. That was the administrative case, and it was a real one. Curzon's government, with Herbert Risley as Home Secretary its most forceful drafter, proposed in December 1903 to join Chittagong, Dacca and Mymensingh to Assam, and the Partition took effect on 16 October 1905. Eastern Bengal and Assam, with its capital at Dacca, held about 31 million people, most of them Muslim, while the truncated western province left Bengali Hindus a minority beside Hindi and Oriya speakers. Risley did not disguise the political calculation. In a confidential minute he observed that 'Bengal united is a power', and that a divided Bengal would pull in different directions, a remark that Sarkar (1973) reads as the plainest statement of the intention to weaken the Calcutta bar, press and university from which the Congress leadership drew its strength. Curzon, touring the eastern districts in February 1904, made the same case to Muslim audiences at Dacca, where, in Sarkar's account (1973), he offered the new province as a place in which Muslims would carry a weight that Calcutta had denied them. Muslim notables such as Nawab Salimullah of Dacca supported the measure, and the jute of eastern Bengal acquired a government and a port interest of its own.

Opposition began at the Calcutta Town Hall on 7 August 1905 and spread through the boycott of Manchester cloth, reaching its symbolic peak in the rakhi-bandhan of 16 October. The idiom was Hindu. Bankimchandra's *Bande Mataram* personified the homeland as a goddess, and Muslim peasants and weavers hurt by the boycott saw a campaign of landlords and creditors. Riots at Comilla and Jamalpur in 1906–07 marked the fault line, though agrarian tension and moneylending resentment fed them as much as creed (Sarkar, 1973; Ray, 1984). The government

gave way in 1911. The annulment announced at the Delhi Durbar of 12 December reunited Bengal, separated Bihar and Orissa as a province in 1912 and moved the capital to Delhi, and Muslim leaders at Dacca concluded that the government rewarded agitation more readily than loyalty.

The western and northern peripheries were cut on the same principle of administrative convenience, and with comparable consequences. Sind, annexed in 1843, was attached to Bombay Presidency, a Muslim-majority territory with a commercial Hindu minority administered from a Presidency across the Rann; it was separated from Bombay in 1936, and the separation had by then become a bargaining counter in the constitutional negotiations. In 1901 the Pashtun districts were detached from Punjab to form the North-West Frontier Province, and eight years earlier the Durand Line of 1893 had already cut across Pashtun kinship and trade. Caravan routes and grazing circuits crossed both lines. Once customs posts, passes and police stations stood on them, the seasonal movement of herds and the carriage of goods that had been ordinary exchange could be policed as trespass. In Punjab the canal colonies of the Chenab and Jhelum, opened from the 1890s, settled loyal Sikh and Muslim peasants on state land and created new mixed districts such as Lyallpur and Montgomery (Gilmartin, 1988).

Between the wars, the language of numbers reached the villages. The Government of India Act of 1919 enlarged the electorate to about five million and the Act of 1935 to roughly thirty million, and politicians who now needed peasants’ votes spoke to them in the idiom of community. The Khilafat agitation of 1919–24 showed that a religious grievance could mobilise a mass following; its collapse left a mobilised constituency without a cause, and riots at Kohat in 1924, Calcutta in 1926 and Lahore in 1927 followed (Minault, 1982). The Depression of 1929–33 cut the prices of wheat, rice and jute by roughly half while rents and revenue adjusted slowly,

so that debts which had been bearable in 1928 were crushing by 1932. Moneylenders, often Hindu in Punjab and the United Provinces, and landlords, often Hindu in Bengal, became objects of peasant anger. The Krishak Praja Party of A. K. Fazlul Huq, founded in 1936, campaigned on debt relief and the abolition of zamindari, and the Bengal Agricultural Debtors Act of 1936 responded. The elections of 1937 under the 1935 Act deepened Hindu fear of a Muslim-led ministry and Muslim fear of a Hindu-dominated one (Chatterji, 1994). The Muslim League's Lahore Resolution of March 1940 then called for independent states in the Muslim-majority north-western and eastern zones (Jalal, 1985).

The war emptied the state of its capacity to govern as before. The Cripps Mission of 1942 proposed a post-war dominion with a provincial right of non-accession, which made provinces the building blocks of any settlement, and the Bengal famine of 1943 killed an estimated two to three million. In the elections of 1945–46 the League took every one of the thirty seats reserved for Muslims in the Central Legislative Assembly, and 429 of the 492 seats reserved for Muslims in the provincial assemblies (Talbot, 1988). The Cabinet Mission of 1946 failed. The Calcutta killings of 16–19 August 1946 left several thousand dead, and violence in Noakhali and Bihar followed. Mountbatten, arriving as Viceroy in March 1947, advanced the date of transfer to 15 August, and the plan of 3 June 1947 provided for the partition of Punjab and Bengal. Two boundary commissions, each with four judges under Sir Cyril Radcliffe as chairman, were to demarcate the contiguous majority areas of Muslims and non-Muslims, taking account of other factors.

Radcliffe had never visited India and had five weeks. He worked from the 1941 census, whose district figures were disputed, and from outdated maps; canal headworks and railway lines were cut by the lines he drew (Chatterji, 2007; Khan, 2007). Lahore went to Pakistan, the

Muslim-majority tehsils of Gurdaspur and parts of Ferozepur were contested, and in Bengal Muslim-majority Murshidabad went to India while Hindu-majority Khulna went to Pakistan. The award was published on 17 August 1947, two days after the transfer of power, and millions then learned which state they lived in.

## After 1947: Inheritance Without Empire

The new states took over the apparatus largely intact. The Government of India Act of 1935, adapted by the Indian Independence Act of 1947, served as the interim constitution of both dominions, and the Indian Civil Service passed into the Indian Administrative Service and, in Pakistan, the Civil Service of Pakistan. Alavi (1972) described Pakistan's 'overdeveloped' state, a bureaucratic apparatus out of proportion to the weak indigenous classes it governed. In India the first electoral rolls were built from colonial registers by officials who classified before they enfranchised (Shani, 2018). Both censuses of 1951 kept the religion column, the decennial rhythm and the single-answer schedule. India dropped caste enumeration for all but Scheduled Castes and Tribes, which kept the principle that a person belongs to a counted community and made one category, the Scheduled Caste, a matter of entitlement (Kaviraj, 1992).

None of this was inertia alone. Personal law shows how inherited instruments were put to work, and for different ends. India kept the Shariat Application Act of 1937 and reformed Hindu law through the Hindu Code legislation of 1955–56, and the Hindu Marriage Act of 1955 defined Sikhs, Jains and Buddhists as Hindus for its purposes. The Constitution (Scheduled Castes) Order of 1950 limited Scheduled Caste status to Hindus and was amended to admit Sikhs in 1956 and Buddhists in 1990, so that a Dalit's entitlements depended on the religion he declared, much as converts' inheritance had turned on a declaration after 1850. The Sachar Committee (2006) measured Indian Muslims' position against community benchmarks that the Raj had first

introduced. In Pakistan the Second Amendment of 1974 declared Ahmadis non-Muslim, within a longer history of state-led boundary-making (Qasmi, 2014), and electoral law followed the same logic: joint electorates introduced in 1957 gave way to separate electorates in 1985, which were abolished again in 2002. A protective state and an exclusionary one could draw on the same inheritance, and in both cases the choice was theirs.

Property law gives the plainest chronology of that choice. In 1950 the Evacuee Property Acts and, in April of that year, the Nehru–Liaquat Pact tried to manage the movable and immovable property left behind by those who had crossed (Zamindar, 2007). Permit regimes had already restricted movement across the new line. The war of 1965 introduced a different category, the ‘enemy’. In East Pakistan the Enemy Property (Custody and Registration) Order of 1965 placed the property of persons classed as enemy nationals under state custody, the Enemy Property (Continuance of Emergency Provisions) Ordinance of 1969 kept the arrangement in force after the emergency lapsed, and after independence the Vested and Non-Resident Property (Administration) Act of 1974 allowed the state to take over Hindu-owned land on the ground that owners were enemy or absent nationals. India’s own Enemy Property Act of 1968 followed the same pattern on the other side of the line. The Hindu share of Bangladesh’s population fell from roughly 22 per cent in 1951 to under 8 per cent in the 2022 census, a decline that reflects a minority leaving as much as shrinking.

Partition did not end with the award. Between 14 and 16 million people moved in Punjab and Bengal, and estimates of deaths range from 200,000 to two million, a spread that shows why no figure is firm (Khan, 2007; Talbot & Singh, 2009). Hindus left East Pakistan in waves after 1950, 1964 and 1971, and the Bengal borderland kept its enclaves until the Land Boundary Agreement of 2015 exchanged 111 Indian enclaves in Bangladesh for 51 Bangladeshi enclaves

in India (van Schendel, 2005). In Assam the Line System of 1920 and the transfer of Sylhet to East Pakistan after the referendum of July 1947 turned a colonial migration problem into a citizenship dispute, running through the Assam Accord of 1985, with its cut-off date of 24 March 1971, to the National Register of Citizens of 2019, which left some 1.9 million people off its final list (Baruah, 1999). Kashmir, a Muslim-majority princely state sold to a Hindu ruler by the Treaty of Amritsar of 1846, has been disputed since October 1947.

## Reading the Evidence

Two findings would unsettle this account. A demonstration that categories shaped no behaviour would, and the evidence points the other way: Sikh reformers, Arya publicists and Muslim petitioners all argued in the census's terms. A demonstration that the state designed the outcome would also unsettle it, and the sources point against that, since officials contradicted one another, annulled their own partitions and conceded electorates they disliked. What the evidence supports is a state that governed cheaply through categories it could count and defend, and whose routine operations made communities discrete and rival, while Indian actors accepted, contested and weaponised those categories and regional demographic forces produced the numbers on which the categories were then read.

The strongest objection to this picture comes from after 1947. If the colonial categories explain so much, why did the successor states keep them? Passive inheritance is the weaker answer, and the evidence for it is thin. The single-answer religion column of the 1951 censuses was retained by choice, the Scheduled Castes Order of 1950 turned a census category into an entitlement and then tied that entitlement to religion, and the enemy-property instruments of 1965, 1968, 1969 and 1974 adapted colonial custodial law to new wars and new minorities. The post-colonial life of these categories reveals a stark functional irony. While the Order of 1950

turned the census into a vehicle for caste entitlements in India, the Vested and Non-Resident Property (Administration) Act of 1974 transformed custodial law into an apparatus of minority dispossession in Bangladesh. These were instruments in the hands of governments with their own purposes, and the colonial state's contribution was to have made them available. The colonial period set the terms on which later states chose their majorities and minorities, but it did not make the choice, and the pattern of that choice can be read in the share of Bangladesh's population still counted as Hindu in 2022 and in the 1.9 million people left off the Assam register of 2019.

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